

## 26STCP01543 26STCP01543

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-08-26

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Case Number: 26STCP01543 Hearing Date: August 26, 2026 Dept: 307

# 24 TENTATIVE RULING 9:15 a.m., Wednesday, August 26, 2026

LAUZON

PALUCH v. ALECIA SIMPSON [26STCP01543]

PETITIONER

LAUZON PALUCH'S PETITION TO COMPEL BINDING ARBITRATION AND FOR COURT

APPOINTMENT OF AN ARBITRATOR

NOTICE: DEFECTIVE

(see below)

TIMELINE:

Petition to compel arbitration of attorney-client fee dispute

8/9/2023: Petitioner Lauzon Paluch, A

Professional Law Corporation ("Petitioner") enters into a written contract with

Respondent Alecia Simpson ("Respondent"), whereby Petitioner agreed to perform

legal services for Respondent in connection with her dissolution matter. (Pet.,

Exh. A.) Respondent incurred a balance of fees and costs in the amount of \$55,112.45, which she allegedly failed to pay.

6/26/2024: Petitioner notifies Respondent of her right to arbitrate the fee dispute with Petitioner. (Pet., Exh. B.)

Petitioner does not respond.

4/17/2026: Petitioner files this Petition to Compel Arbitration as to the fee dispute, which is followed by a Notice of Motion (4/21/2026) and a Proof of Service (4/23/2026). As of 8/25/2026, no Opposition has been received.

TENTATIVE

RULING: PETITIONER LAUZON PALUCH'S PETITION TO COMPEL BINDING ARBITRATION AND FOR COURT APPOINTMENT OF AN ARBITRATOR is DENIED.

I. PETITION

TO COMPEL ARBITRATION

Petitioner moves for an order compelling the parties' fee dispute to arbitration pursuant to the arbitration agreement in the Retainer Agreement for Petitioner's representation of Respondent in her family law dispute. (Pet., Exh. A.)

The petition is DENIED because Petitioner does not establish valid service of the petition and notice of the hearing. According

to the Proof of Service, filed 4/23/2026, Petitioner served the petition and notice of the hearing via prepaid mail to a Florida address and by email on 4/23/2026. (Proof of Service, 4/23/2026.) Under Code Civ. Proc., § 1290.4, subd. (a), “[a] copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.” (Code Civ. Proc., § 1290.4, subd. (a).)

In this case, the Petitioner fails to identify a provision of the arbitration agreement which permits a copy of the petition to compel arbitration to be served by mail or email. At minimum, the Retainer Agreement provides “that notice and service of any petition to confirm an arbitration award issued pursuant to this clause shall be sufficient if served by regular mail.”

(Pet., Exh. A, § 20(A)(8).) By its plain terms, this provision is limited to service of a petition to confirm an already existing arbitration award, and does not include a petition to compel the dispute to arbitration.

Code Civ. Proc., § 1290.4, subd. (b) governs

where “the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision...” (Code Civ. Proc., § 1290.4, subd. (b).) Under

Code Civ. Proc., § 1290.4, subd. (b)(2), “[s]ervice outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail.” (Code Civ. Proc., § 1290.4, subd. (b)(2), *italics added.*) “Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made.” (*Ibid.*)

Petitioner fails to comply with these statutory requirements. Petitioner’s Proof of Service does not specify that the mailing occurred by “registered or certified mail” and Petitioner fails to provide an affidavit containing “the return receipt ... bearing the signature of the person on whom service was made.” (*Ibid.*) Accordingly, Petitioner fails to demonstrate compliance with the statutory requirements for service of the petition and notice of the hearing for an out-of-state respondent. Based on Petitioner’s invalid service of process and Respondent’s failure to oppose the petition, the Court finds Respondent would be prejudiced if the Court were to consider the petition on the merits at this juncture.

The Court sets an OSC Re: Dismissal of Action for failure to serve the petition and to give notice as required pursuant to Code Civ. Proc., § 1290.4, subd. (b)(2) for October 21, 2026 at 8:30 a.m.

Petitioner Lauzon Paluch to serve notice of

ruling. This tentative ruling ("TR") shall be the order of the Court unless

changed at the hearing and shall by this reference be incorporated into the

Minute Order. TR emailed to petitioner's counsel and posted to court website on

8/25/26 at 11 pm.